Supreme Court, U.S.
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No. 99-254

In The

# Supreme Court of the United States

ELWOOD STROUT, *et al.*,

*Petitioners,*

v.

J. DUKE ALLBANESE,

*Respondent.*

**On Petition For A Writ Of Certiorari To The Maine Supreme Judicial Court Sitting As The Law Court**

## RESPONDENT'S BRIEF IN OPPOSITION TO PETITION FOR WRIT OF CERTIORARI

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## QUESTION PRESENTED

Does the First Amendment of the United States Constitution require the State to pay unrestricted, direct subsidies to a pervasively sectarian school for a religious education?

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## RESPONDENT'S BRIEF IN OPPOSITION

Respondent, J. Duke Albanese, Commissioner of the Maine Department of Education, respectfully requests that this Court deny the Petition for Writ of Certiorari seeking review of the decision and judgment of the United States Court of Appeals for the First Circuit, issued on May 27, 1999, reproduced in the Appendix to the Petition for Writ of Certiorari ("Pet. App.") at 1a-24a, reported in *Strout v. Albanese*, 178 F.3d 57 (1st Cir. 1999).

## STATEMENT OF THE CASE

This petition parallels that of *Bagley v. Raymond School Department*, 728 A.2d 127 (Me. 1999), *petition for cert. filed*, 68 U.S.L.W. 3105 (U.S. Aug. 10, 1999) (No. 99-163). The Maine Law Court in *Bagley* and the First Circuit in this case each upheld Maine's school voucher program against First Amendment challenges. Although petitioners in the present case seek to characterize their challenge more creatively, the core issue is their effort to require the State to pay an unrestricted, direct public subsidy to a pervasively sectarian high school for religious education. Such an unfettered subsidy has never been required or even permitted by this Court or in any of the cases referred to by petitioners.

The parties generally agree that the material facts are undisputed. The State of Maine operates a tuition program. Maine requires all school districts to provide education for their residents from kindergarten to the 12th grade. 20-A M.R.S.A. § 1001(8). Approximately one-half of the school districts satisfy this obligation by operating

their own elementary and secondary schools. Petitioners do not suggest that in such circumstance, the district must pay for or in any way subsidize a separate sectarian education.

Due to the lack of density of population, the other half of the school districts, including that of the Town of Minot, fulfill their public education obligation through a tuition program established pursuant to 20-A M.R.S.A. § 5204. Under this alternative program, these districts do not operate their own public schools, but rather pay tuition for their students to attend other schools.

Pursuant to Maine's school voucher program, the school district pays tuition directly to a public school or to a private school that has been approved for tuition purposes pursuant to 20-A M.R.S.A. § 2951. The statute specifically provides that sectarian schools are ineligible for approval for tuition purposes. 20-A M.R.S.A. § 2951(2). Nearly 14,000 students attend public or approved private schools under the tuition program, resulting in the expenditure of approximately $70 million in public funds.

Minot operates a public school for kindergarten through 8th grade, which all of the petitioners' children attend. However, Minot does not run a high school, and instead provides secondary education through the tuition program. The petitioners – three sets of parents in Minot – decided to send their children to St. Dominic Regional High School in Lewiston, Maine. St. Dominic is a pervasively sectarian Catholic high school. Because St. Dominic's tuition is less than the maximum allowable tuition under the program, all of the tuition at St.

Dominic's would be paid by the government. Petitioners decided to send their children to St. Dominic for a variety of reasons, including availability, academics, and atmosphere, and although all of the petitioners believe that the religious aspects of St. Dominic are a positive factor, none of the petitioners contend that a central tenet of their religion compelled them to send their children to that school.

On November 21, 1997, petitioners filed suit against the Commissioner of the Maine Department of Education, as well as several local defendants.[1] Petitioners contended that the district was required by the First Amendment to make direct, unrestricted payments to the pervasively sectarian high school for their children's religious education. The petitioners and the Commissioner filed cross-motions for summary judgment, and on August 11, 1998, the District Court (Hornby, J.) granted the Commissioner's cross-motion, concluding that:

> I decide only whether Maine is constitutionally required to extend subsidies to sectarian schools. I find no authority for such a requirement. Although the plaintiffs have phrased their arguments in terms of free exercise claims, establishment clause claims, equal protection claims and substantive due process claims, I find it unnecessary to address these separately or to analyze the various tests that have been enumerated. The same answer is obvious for all.

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[1] The local defendants included the Minot School Committee, Maine School Union #29, and the Superintendent of School Union #29. These defendants were dismissed out of the case, which is not an issue being raised before this Court.

> The Plaintiffs certainly are free to send their children to a sectarian school. The right is protected by the Constitution. The law is clear, however, that they do not have the right to require taxpayers to subsidize that choice. That is true in a district that builds and operates its own public high school; it is also true in a district that has no public high school.

*Strout v. Commissioner, Maine Department of Education*, 13 F.Supp.2d 112, 114 (D.Me. 1998), reproduced at Pet. App. at 27a (citations and footnotes omitted).

On appeal, the First Circuit affirmed unanimously. Unlike the District Court, Chief Judge Torruella, writing for Judge Stahl and himself, addressed seriatim each of the bases upon which petitioners challenged the school voucher system. First addressing the Establishment Clause, the court was

> at a loss to understand why plaintiffs-appellants believe that the Establishment Clause gives them a basis for recovery. The Establishment Clause forbids the making of a law respecting the establishment of any religion. There is no relevant precedent for using its negative prohibition as a basis for extending the right of a religiously affiliated group to secure state subsidies.

Pet. App. at 15a. The court touched upon the use of the direct-indirect aid distinction as an instructive guideline but explained further that "one thing is certain: the Supreme Court has never permitted broad sponsorship of religious schools." *Id.* at 11a. The First Circuit observed that the only instances where the Supreme Court has permitted funding to flow to religious schools have been

in the context of a targeted grant, available to a limited population, for a specific purpose. *Id.* The court correctly noted that the petitioners' reliance upon "neutrality as the keystone of the Establishment Clause jurisprudence" forgets that neutrality is but one factor to be considered. *Id.* at 13a-14a.

The court then went on to deal with petitioners' equal protection argument, concluding that it failed because "[g]iven the present state of jurisprudence, we see no way in which" requiring the State to pay grants directly to sectarian schools to subsidize children's schooling "can be done without violating the Establishment Clause." *Id.* at 16a.

Petitioners' free exercise claim was disposed of on a variety of grounds, including, *inter alia,* Maine's voucher system does not prevent attendance at a religious school – all it means is that the costs of religious education must be borne by the parents and not the State; and religious education is not a central tenet of petitioners' religious practice. *Id.* at 18a-19a. Finally, petitioners' due process claim was summarily disposed of because, although substantive due process precludes the State from preventing individuals from obtaining a religious education, it does not *require* the State to directly pay for a sectarian education. *Id.* at 19a. Regarding the free speech claim, the court correctly noted that there is "little more than academic articles to bolster the[ ] view" that the parents' rights to communicate and instruct their children in the areas of religion, morals and ethics, are somehow infringed upon. *Id.* at 20a.

Senior Circuit Judge Campbell wrote a concurring opinion, concluding that Maine law does not violate the free exercise clause nor principles of substantive due process. *Id.* at 20a. Judge Campbell further concluded that neither the Establishment nor equal protection clauses provide petitioners with an affirmative basis for requiring funding of sectarian schools, and, therefore, provide no basis for affirmative relief. *Id.* at 20a-21a. It was, thus, unnecessary, according to Judge Campbell, to reach the level of analysis of the Establishment Clause presented by Judge Torruella. Under the rational basis standard, Maine's statute did not violate petitioners' equal protection rights. *Id.* at 21a-23a.

## REASONS FOR DENIAL OF THE WRIT

Just as in the petition in *Bagley*, there is no compelling reason for the Court to review the First Circuit's decision in this case. First, as in the case of *Bagley*, the issues the petitioners wish to present to the Court are not properly framed. Second, and more significantly, this Court, and the lower courts, have been both clear and consistent throughout the development of the jurisprudence surrounding the First Amendment that unrestricted, direct subsidies to pervasively sectarian schools for religious education violates the Establishment Clause. Moreover, as noted by both lower courts that have considered the issue, this Court has never hinted that the Establishment Clause *required* the government to affirmatively make such a subsidy.

## I. THE COURT SHOULD DENY THE WRIT BECAUSE THE ISSUES ARE NOT PROPERLY FRAMED.

Petitioners here ignore a fatal deficiency rendering this matter inappropriate for certiorari. As a matter of fact, education at a parochial school is not a central religious belief or practice of these petitioners. Pet. App. at 18a. "The free exercise inquiry asks whether the government has placed a substantial burden on the observance of a *central* religious belief or practice . . . " *Hernandez v. Commissioner,* 490 U.S. 680, 699 (1989) (emphasis added). Thus, this is not a case for the Court to consider the First Amendment issues as sought by petitioners.

## II. THE FIRST CIRCUIT DECISION DOES NOT CONFLICT WITH THIS COURT'S PRECEDENTS.

The First Circuit's decision is in full conformance with this Court's precedents involving the Establishment Clause.[2] In developing its First Amendment jurisprudence over the last three decades, the Court has focused on the specific features of the particular government action before it, cautioning further that the Court's precedent remains intact unless directly overruled. *Agostini v. Felton,* 521 U.S. 203, 237 (1997); *Rosenberger v. Rector &*

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[2] Although petitioners parse their petition into five separate questions, presenting challenges based upon the Establishment Clause, the Equal Protection Clause, the Free Exercise Clause, substantive due process, and the Free Speech Clause (Petition at i-ii), the substance of their petition deals almost exclusively with Establishment Clause jurisprudence. We will therefore focus our attention in this area.

*Visitors of the University of Virginia*, 515 U.S. 819, 852 (1995) (O'Connor, J., concurring). The Court has consistently and clearly stated that neither the Establishment Clause nor the Free Exercise Clause requires, or even allows, direct, unrestricted governmental financial subsidies to a sectarian school for a religious education. The invalidity of such payments to religious schools for a religious education has not been questioned. The jurisprudence surrounding the Establishment Clause has developed in an effort to determine whether particular types of aid constitute unconstitutional direct payment of public funds from the government to a religious school.

Petitioners certainly have the right to send their children to a private sectarian school. However, efforts to *require* a government to pay for assistance to sectarian schools have been consistently rejected. *Luetkemeyer v. Kaufmann*, 364 F.Supp. 376 (W.D. Mo. 1973) (3-judge court), *aff'd mem.* 419 U.S. 888 (1974) (refused to require state to provide transportation to parochial school children although it could do so under Establishment Clause); *Brusca v. Missouri*, 332 F.Supp. 275 (E.D. Mo. 1971) (3-judge court), *aff'd mem.* 405 U.S. 1050 (1972) (claim that state must provide tuition assistance to children to attend sectarian school rejected under rational basis scrutiny).[3] This Court has held in several contexts "that a legislature's decision not to subsidize the exercise of a fundamental right does not infringe that right . . . " *Regan v. Taxation With Representation*, 461 U.S. 540, 546, 549 (1983) (rejected the "notion that First Amendment

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[3] Such affirmances are adjudications on the merits. *Hicks v. Miranda*, 422 U.S. 332, 343-45 (1975).

rights are somehow not fully realized unless they are subsidized by the State"), *quoting Cammarano v. United States*, 358 U.S. 498, 515 (1959) (Douglas, J., concurring); *see also Rust v. Sullivan*, 500 U.S. 173, 201 (1991) ("the Government has no constitutional duty to subsidize an activity merely because the activity is constitutionally protected") (citation omitted). As noted by the lower court, petitioners' efforts to use the Establishment Clause's "negative prohibition" as a sword to *require* state subsidies is without precedent. Pet. App. at 15a.

Further, those cases that have considered the type of aid the government *may*, if it chooses, provide to sectarian schools have consistently rejected the type of subsidies sought by petitioners. In *Community for Public Education v. Nyquist*, 413 U.S. 756 (1973), the Court had before it three forms of educational aid: direct grants to nonpublic schools, tuition reimbursement to parents, and tax deductions to parents. The Court struck down direct unrestricted grants to sectarian schools as anathema to the Establishment Clause. *Id.* at 774-76. The majority also rejected the two other forms of aid with regard to sectarian schools. Writing for the dissent, Justice Rehnquist only disagreed with those portions of the decision relating to tax credits and deductions, and did not dissent to the striking down of outright grants. *Id.* at 805-06. Indeed, Justice Rehnquist wrote that it was "clear that tax deductions and exemptions, even when directed to religious institutions, occupy quite a different constitutional status under the religion clauses of the First Amendment than do outright grants to such institutions." *Id.* at 806.

In *Roemer v. Maryland Public Works Bd.*, 426 U.S. 736, 747 (1976), the plurality approved grants to private

colleges, including religious affiliated ones, of funds that could not be used for sectarian purposes. Again, the Court was clear that:

> The State may not, for example, pay for what is actually religious education, even though it purports to be paying for a secular one, and even though it makes its aid available to secular and religious institutions alike.

*Id.* at 747.

Subsequent decisions of this Court have not questioned the invalidity of direct grants to sectarian schools for religious education. In *Mueller v. Allen*, 463 U.S. 388 (1983), the Court upheld tax deductions for actual expenses incurred for the tuition, textbooks and transportation of dependents attending private sectarian as well as non-sectarian and public schools. In writing for the majority, Justice Rehnquist reiterated that the direct transmission of subsidies from the state to the sectarian schools themselves were invalidated by the Court and were of a different type of aid than that before the Court in *Mueller. Id.* at 399 & n. 11.

In *Witters v. Washington Department of Service for the Blind*, 474 U.S. 481 (1986), in upholding assistance to a blind person at a religious college, the Court again stated that it is well-settled "that the State may not grant to a religious school, whether cash or in kind, where the effect of the aid is 'that of a direct subsidy to the religious school' from the State." *Id.* at 487, *quoting Grand Rapids School District v. Ball*, 473 U.S. 373, 394 (1985). Indeed, the court noted "that aid to a religious institution unrestricted in its potential uses, if properly attributable to the

State, is 'clearly prohibited under the Establishment Clause' because it may subsidize the religious functions of that institution." *Id.* at 489 (citation omitted). Likewise, in upholding the provision of a sign language interpreter for a student at a religious school, the Court, in *Zobrest v. Catalina Foothills School District*, 509 U.S. 1, 12-13 (1993), emphasized that such services were valid because they were not direct financial support for non-public sectarian institutions.

This Court's decision in *Rosenberger v. Rector & Visitors of the University of Virginia*, 515 U.S. 819 (1995), upheld the expenditure of University money to pay an independent contractor to print a student religious newspaper. There, too, the Court "recognized the special Establishment Clause dangers where the government makes direct money payments to sectarian institutions," which were not present in that case. *Id.* at 841, 842. In a concurring opinion, Justice O'Connor emphasized that the Court's decisions "provide no precedent for the use of public funds to finance religious activities," and the *Rosenberger* decision "neither trumpets the supremacy of the neutrality principal nor signals the demise of the funding prohibition in Establishment Clause jurisprudence." *Id.* at 847, 852. Justice O'Connor pointed out that the focus must be on the specific features of the particular governmental action put before it. *Id.* at 852. Petitioners misread *Rosenberger*, and attempt to meld two different areas of First Amendment jurisprudence: the free speech forum cases and the public subsidy cases. Petition at 7-15. This Court, however, drew a clear distinction between the two, noting that there is a fundamental difference between access to a public forum and access to a public

subsidy, and the decision "cannot be read as addressing an expenditure from a general tax fund . . . " 515 U.S. at 841.

Finally, this Court's decision in *Agostini v. Felton*, 521 U.S. 203 (1997), dealt with the provision of supplemental, remedial instruction – secular in nature – in private and parochial schools. The majority decision written by Justice O'Connor reasoned that these services were supplemental, and did not relieve sectarian schools of costs they otherwise must bear in educating their students. *Id.* at 228. The Court emphasized that no public funds ever reached the coffers of religious schools, reiterating that the nature of the aid that the government chooses to provide remains a critical factor. *Id.* at 232. The petitioners' brief is founded, in large part, upon the notion that the First Circuit made a fatal error misreading the direct versus indirect aid distinction. The argument suggests that indirect aid is always constitutional, and the Maine tuition voucher is indirect because the parent, not the government, decides where to send the child to school. Petition at 7-10. This theory is simply wrong. The First Circuit correctly relied upon this Court's precedent (*see, e.g., Agostini*, 521 U.S. at 232), that the nature of the aid remains a critical factor. Pet. App. at 11a. Here, the aid is direct *and* unrestricted *and* for a religious education *and* covers the entire cost of the tuition for that education. No precedent of this Court suggests such a subsidy would conform with the Establishment Clause. Indeed, all of the Court's statements are to the contrary.

In sum, this Court's cases have been unwavering in holding that direct, unrestricted financial subsidies to a pervasively sectarian school for religious education is

and remains unconstitutional. Certainly, there is no hint by the Court that a state is *required* to pay such subsidies. Thus, the First Circuit's decision is in full conformance with this Court's consistent holdings on the subject, and there is no ground for certiorari in this case. Sup.Ct.R. 10(c).

## III. THE FIRST CIRCUIT DECISION DOES NOT CONFLICT WITH STATE DECISIONS.

The First Circuit's decision in *Strout* does not conflict with the three cases relied upon by petitioners at pages 14-19 of their brief. Preliminary, as noted above, in *Bagley v. Town of Raymond*, the Maine's highest court held this identical program to be in full conformance with the First Amendment.[4]

The petitioners first refer to the Wisconsin decision in *Jackson v. Benson*, 578 N.W.2d 602 (Wis.), *cert. denied*, 119 S.Ct. 466 (1998). In that case, the Wisconsin court had before it a program where public funds were paid to parents, not to the school, and the funds could only cover educational programs at sectarian or non-sectarian private schools. In a split decision, that court upheld the plan emphasizing that the program did not involve the direct flow of the subsidy from the government to the

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[4] Likewise, in *Columbia Union College v. Clark*, 159 F.3d 151 (4th Cir. 1998), *cert. denied*, 119 S.Ct. 2357 (1999), the Fourth Circuit correctly found that direct funding to pervasively sectarian institutions would violate the Establishment Clause, and remanded the matter to determine whether the institution was, indeed, pervasively sectarian.

school. Indeed, the Court in *Jackson* went out of its way to distinguish that situation from direct funding of a pervasively sectarian education, and did not have before it an effort to *require* the government to pay for a religious education. Thus, there is no conflict with the First Circuit's decision on this point.

Petitioners next turn to the Ohio decision in *Simmons-Harris v. Goff*, 711 N.E.2d 203 (Ohio, 1999). In that case, the Court struck down on state constitutional grounds a school reimbursement program involving scholarships paid to the student's parents, who may use them at a sectarian school, noting that "[d]irect governmental subsidies to religious schools are clearly unconstitutional." *Id.* at 209. There, the issue was whether the government *could*, not *must*, provide the disputed funding. The Ohio court's dicta that the Establishment Clause is not violated by the scheme has since been repudiated, at least preliminarily, in *Simmons-Harris v. Zelman*, 1999 WL 668839 (N.D. Ohio 1999). The District Court granted a motion to preliminarily enjoin the Ohio program, concluding that the Ohio Supreme Court's reasoning regarding the Establishment Clause is unpersuasive and that there is "a very substantial chance" that the program will be found to violate the First Amendment. *Id.* at *16 & *17.[5] Thus, again, there is no conflict between the First Circuit and any binding precedent out of Ohio.

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[5] The district court issued a partial stay of the preliminary injunction on August 27, 1999, on the basis of temporary harm to children who relied upon the program, due to the imminent start of the school year. 1999 WL 669222 (N.D. Ohio 1999).

Nor does the First Circuit's decision conflict with the Arizona court's holding in *Kotterman v. Killiam*, 972 A.2d 606 (Ariz.), *petition for cert. filed*, 67 U.S.L.W. 3671 (U.S., Apr. 26, 1999) (No. 98-1760). There, in a 3-2 decision, the court upheld a complicated state tax credit because there were no direct subsidies, recognizing that such subsidies affront the Constitution. *Id.* at 616.[6]

As is obvious, these three cases do not involve direct subsidies from the government to a religious school to be used for religious purposes, and, indeed, each court went to great pains to distinguish the particular aid at issue from direct, financial subsidies. Moreover, they do not involve efforts to require the government to provide aid where it has chosen not to do so. Thus, there is no conflict, and there is no present need to address this issue. Sup.Ct.R. 10(a).

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[6] In passing, petitioners also refer to case law out of Vermont. However, the case primarily relied upon, *Campbell v. Manchester Board of School Directors*, 641 A.2d 352, 359 (Vt. 1994), clearly stated that it was not addressing the validity of direct payment to a sectarian institution. Subsequently, the Vermont court found the tuition reimbursement program, which called for payments to sectarian schools, to be unconstitutional under the provisions of the Vermont Constitution. *Chittenden Town School District v. Vermont Department of Education*, 1999 WL 378244 (Vt. 1999). Further, in considering the earlier *Campbell* case, the lower court rejected its holding, finding quite clearly that direct payments to sectarian schools in the Vermont program did violate the Establishment Clause. *Chittenden Town School District v. Vermont Department of Education*, No. S0478-96RC (Vt. Super. Ct., Rutland Cty., June 27, 1997).

## CONCLUSION

For the foregoing reasons, the petition for writ of certiorari should be denied.

Respectfully submitted,

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